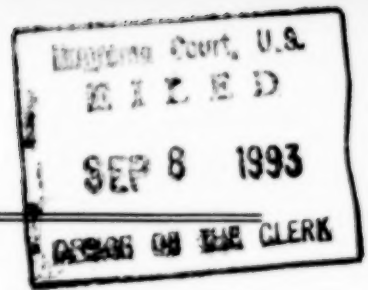


No. 92-1510



In The
Supreme Court of the United States
October Term, 1993

MICHAEL J. CAVANAUGH, Executive Director of the
South Carolina Department of Probation, Parole, and
Pardon Services; SOUTH CAROLINA DEPARTMENT
OF PROBATION, PAROLE, AND PARDON SERVICES,

Petitioners,

vs.

GARY LEE ROLLER,

Respondent.

**On Writ Of Certiorari
To The United States Court Of Appeals
For The Fourth Circuit**

PETITIONERS' REPLY BRIEF ON THE MERITS

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PETITIONERS' REPLY BRIEF ON THE MERITS

SUPPLEMENT TO THE STATEMENT OF THE CASE

Parole eligibility has always been set by statute in South Carolina, and it is simply not at issue here. What is at issue is the frequency of parole reconsideration hearings after a parole rejection. And this, we believe, makes all the difference.

Prior to June 15, 1981, the frequency between parole hearings was determined by policy of the South Carolina

Parole Board on the basis of sentence length, rather than by any statute. That policy was this:

<u>sentence length</u>	<u>frequency of reconsideration hearings upon parole rejection</u>
30 yrs or more	24 months
25 yrs but less than 30 yrs	21 months
20 yrs but less than 25 yrs	18 months
15 yrs but less than 20 yrs	15 months
less than 15 yrs	12 months

On June 15, 1981, the General Assembly of South Carolina enacted legislation governing the frequency of parole reconsideration hearings upon a rejection for parole. The 1981 law required parole reconsideration hearings annually for all inmates eligible for parole.

On June 3, 1986, the legislature further amended the law regulating the frequency of parole reconsideration hearings. The 1986 amendment first defined certain crimes as violent. Then it changed the procedure so that inmates who had been convicted of a violent crime and who were eligible for parole on their sentence would be reconsidered for parole after two years following a rejection. Inmates serving sentences for non-violent crimes would continue to have annual parole reconsideration hearings. This 1986 amendment was applied retroactively. In 1989, the South Carolina Supreme Court ruled that the retroactive application of the law providing for parole reconsideration after two years did not violate the *Ex Post Facto* Clause of the Constitution. *Gunter v. State*, 298 S.C. 113, 378 S.E.2d 443 (1989).

On January 15, 1993, the United States Court of Appeals for the Fourth Circuit ruled, contrary to *Gunter, supra*, that the retroactive application of the two-year wait between parole reconsideration hearings did violate the *Ex Post Facto* Clause. This Court then granted certiorari.

On July 19, 1993, the South Carolina Supreme Court reversed its decision in *Gunter, supra*, in *Griffin v. State*, Opinion Number 23909 (July 19, 1993) (Appendix to Reply Brief 1).

ARGUMENT

- I. **The United States Supreme Court's jurisdiction is unaffected by the South Carolina Supreme Court's decision in *Griffin v. State*, Op. No. 23909 (July 19, 1993) because the South Carolina Supreme Court based its decision upon federal law as interpreted by the United States Court of Appeals for the Fourth Circuit.**

The decision in *Griffin v. State* is based upon federal law:

The Fourth Circuit's analysis is compelling. It is difficult to determine where the difference lies between a review once every two years and once every eight years. This gray area tortures the *ex post facto* analysis between a change in the standards for review and a procedural change in timing. The *Akins* Court, [922 F.2d 1558 (11th Cir. 1991), *cert. denied*, 111 S.Ct. 2915 (1991)] was faced with a statute that provided for a procedural change which effectively changed the standards for parole. We must now acknowledge that where a procedural rule is so overly

intrusive that it substantively effects [sic] the review standard, it then becomes an *ex post facto* violation. In adopting the Fourth Circuit's holding in *Roller*, we overrule our holding in *Gunter*, 298 S.C. 113, 378 S.E.2d 443 (1989).

It is patently clear that the South Carolina Supreme Court's decision is not based on any independent or adequate state ground. The *Griffin* opinion rests primarily upon *Roller v. Cavanaugh*, 984 F.2d 120 (4th Cir. 1993) and its reasoning.

This Court retains jurisdiction to review a state-court decision where it appears "that the state court decided the case the way it did because it believed that federal law required it to do so." *Michigan v. Long*, 463 U.S. 1032, 1041 (1983). The *Griffin* decision does not render a decision by this Court moot since the *Griffin* decision is clearly predicated on the decision of the Fourth Circuit now before this Court.

II. Because he seeks a speedier release from prison, Roller may not proceed in federal court under 42 U.S.C. § 1983; he must first exhaust his state-court remedies through habeas corpus

To support his argument that he is entitled to proceed under 42 U.S.C. § 1983, Roller claims that his procedural due process has been violated. To come within reach of § 1983 he denies outright that what he is seeking is a speedier release, and he focuses on procedure. But the jurisdictional question cannot be answered in the way Roller would have this Court ask it. The question is whether or not Roller's challenge of South Carolina's

procedure really amounts to an attempt to gain an immediate or speedier release. Since Roller seeks more frequent hearings, he seeks a speedier release. The fact that he has a hope of release on parole but not a right to parole does not alter the nature of his claim. He attacks the procedure in order to win a speedier release. He should not be permitted, therefore, to pursue his claim under § 1983. He must proceed under habeas corpus. And he must exhaust his remedies in the state courts of South Carolina. Roller cannot avail himself of § 1983 simply by claiming that he is entitled to parole. The Fourth Circuit's statement to the contrary ignores the fact that Roller is challenging a procedure in order to obtain speedier release. *Roller v. Cavanaugh*, 984 F.2d 120 (4th Cir. 1993).

III. The retroactive application of the South Carolina law requiring two years between parole consideration hearings does not deprive Roller unconstitutionally of a meaningful opportunity to be considered for parole.

Roller argues that the frequency of parole consideration hearings is a part of the punishment. He is wrong about this. And his error leads ineluctably to a patent absurdity: any tampering with parole procedure amounts to a tampering with a substantive right, so that finally no state legislature may ever change its parole procedures and then apply those procedures after the fact without violating the *ex post facto* prohibition. Under Roller's view, states are left with almost no room to experiment with their parole procedures.

In support of his position, Roller relies on the Fourth Circuit's statement that "South Carolina has undoubtedly applied its new statute to 'alter the conditions of . . . [Roller's] preexisting parole eligibility.'" *Roller v. Cavanaugh*, 984 F.2d at 124 (citing *Fender v. Thompson*, 883 F.2d 303, 306 (4th Cir. 1989)). We see precisely here the basic flaw in the Fourth Circuit's reasoning and in Roller's argument: the equation of parole eligibility with parole reconsideration. The Fourth Circuit's and Roller's conclusion that South Carolina has in effect altered its laws on parole eligibility is simply wrong. The law that determines parole eligibility remains unchanged. In South Carolina, parole eligibility annexes at the time of the crime. The frequency of parole hearings once an inmate becomes eligible for parole and is rejected for parole, however, is altogether another matter. To equate the frequency of parole hearings in South Carolina with parole eligibility misunderstands South Carolina's law and conveniently avoids deciding the issue on its merits.

Petitioners rely upon *Rodriguez v. U.S. Parole Commission*, 594 F.2d 170 (7th Cir. 1979). This was a habeas corpus action challenging a change in the frequency of parole consideration hearings. *Rodriguez* says that once a parole system has been created, inmates subject to that system are entitled to a meaningful parole hearing. Failure to provide that meaningful parole hearing denies a federal constitutional right. Under the facts in *Rodriguez*, the change at issue required a parole hearing upon entering prison and a second hearing at or near the expiration date of the sentence. Prior to the change, a parole hearing would be conducted at the one-third point in the offender's sentence. The *Rodriguez* Court held the parole

hearing at the one-third point to be meaningful. The change in procedure required a hearing at the beginning of the sentence and at the end of the sentence, but not at the one-third point. The Court held that the hearing at the end of the sentence was not meaningful. The Court then concluded that the change in the parole reconsideration procedure resulted in the denial of a substantial right – the right to a meaningful parole hearing during the inmate's active sentence. This change, the court held, made the punishment more burdensome after the commission of the crime. *Beazell v. Ohio*, 269 U.S. 167 (1925). Therefore, the change violated the *Ex Post Facto* Clause. The holding in *Rodriguez* is consistent with *Collins v. Youngblood*, 497 U.S. 37 (1990), in which the Court held that a change in procedure must be of such moment as to cause a denial of a substantial personal right, before it can be said to create a constitutional problem under the *Ex Post Facto* Clause.

In Roller's case, there has been no retroactive denial of the opportunity for a meaningful parole hearing before the expiration date of his sentence. He is reconsidered for parole every two years, instead of every year. This may be somewhat of a disadvantage, but it is certainly not so great a disadvantage as to deny him a substantial personal right. Although the frequency of Roller's parole hearings has in fact been decreased, every such procedural change does not violate the Constitution, even if it does marginally disadvantage the inmate. *Dobbert v. Florida*, 432 U.S. 282 (1977).

CONCLUSION

Roller should not be allowed to bring this action under 42 U.S.C. § 1983. Notwithstanding his attempt to frame the question in terms of procedure alone, what he seeks is a speedier release, and that fact forecloses federal jurisdiction under § 1983. But even if the Court should find that federal jurisdiction is properly founded on § 1983, Roller's *Ex Post Facto* claim must fail on the merits. For his claim is meritless. The changes to the South Carolina parole procedure do not deny Roller a substantial personal right. The Fourth Circuit would therefore be properly reversed in this case. We ask the Court to do so.

Respectfully submitted,

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THE STATE OF SOUTH CAROLINA In the Supreme Court

Roger D. Griffin,

Respondent,

v.

State of South Carolina,

Petitioner.

Appeal From York County
John C. Hayes, III, Judge

Opinion No. 23909

Submitted April 20, 1993 – Filed July 19, 1993

AFFIRMED

Attorney General T. Travis Medlock, Chief Deputy Attorney General Joseph D. Shine and Assistant Attorneys General Delbert H. Singleton, Jr. and Lisa Godwin Jefferson, all of Columbia, for Petitioner.

Assistant Appellate Defender Robert M. Pachak, of SC Office of Appellate Defense, of Columbia, for Respondent.

TOAL, A.J.: The State appeals from an order granting Respondent's application for post-conviction relief. We AFFIRM.

Facts

The Respondent, Griffin, was indicted for murder in April 1984. On May 21, 1984, Griffin appeared before the

court and entered a plea of guilty to voluntary manslaughter. Prior to the acceptance of the plea, the trial judge conducted a lengthy colloquy to determine the voluntariness of the plea. At the conclusion of the judge's questioning, the plea was accepted and Griffin was sentenced to thirty years imprisonment. Griffin did not appeal his guilty plea or sentence.

On July 1, 1991, Griffin filed an Application for Post-Conviction Relief. In his application, Griffin alleged, *inter alia*, that the State's application of the Omnibus Crime Bill, specifically the change from an annual review for parole eligibility to a biannual review, violated the *ex post facto* clause of the South Carolina and United States Constitutions. The PCR judge found that Griffin relied upon the annual review for parole eligibility in his decision to plead guilty, and that Griffin's constitutional rights under the *ex post facto* clause were violated. We granted the State's petition for certiorari to review the PCR court's order.

Law/Analysis

The State raises two issues on appeal. The first and pivotal issue is whether the PCR judge erred in ruling that Griffin suffered a violation of the *ex post facto* clause. The second issue is whether the PCR judge erred in finding that Griffin's plea of guilty to voluntary manslaughter was not knowingly, voluntarily, and intelligently entered.

We addressed this first issue in *Gunter v. State*, 298 S.C. 113, 378 S.E.2d 443 (1989). In *Gunter*, the applicant for post-conviction relief raised an *ex post facto* challenge

to the change in parole eligibility review. *Id.* After examining the question, we held that:

the standards governing petitioner's parole eligibility have not . . . changed. Instead, only the frequency with which petitioner can be reconsidered for parole has been altered. We find no *ex post facto* violation in the application of the questioned statute to petitioner.

Id. at 115-16, 378 S.E.2d at 444.

The PCR court distinguished *Gunter* on the grounds that Griffin had pled guilty and that Gunter was convicted at trial. This is not completely correct. While it is true Gunter was tried, convicted, and sentenced to thirty years for voluntary manslaughter, we reversed the conviction in *State v. Gunter*, 286 S.C. 556, 335 S.E.2d 445 (1985). On remand, Gunter pled guilty to voluntary manslaughter and received a thirteen-year sentence. Our PCR holding in *Gunter v. State*, 298 S.C. 113, 378 S.E.2d 443 (1989), was rendered while Gunter was serving the thirteen year sentence as a result of his plea of guilty.

Since *Gunter*, we have held that "[t]he *ex post facto* clause protects against retroactive legislative provisions which are disadvantageous to the offender. A mere procedural change in law, not increasing punishment or changing elements of the offense, does not result in an *ex post facto* violation." *Elmore v. State*, 305 S.C. 456, 459, 409 S.E.2d 397, 399 (1991); *see also Miller v. Florida*, 482 U.S. 423, 107 S. Ct. 2446, 96 L. Ed. 2d 351 (1987).

Respondent cites the recent Fourth Circuit decision in *Roller v. Cavanaugh*, 984 F.2d 120 (1993). In *Roller*, the Fourth Circuit Court of Appeals disregarded our decision

in *Gunter*, and held that the statutory amendment for review of parole eligibility was a violation of the *ex post facto* clause. The Fourth Circuit relied on *Akins v. Snow*, 922 F.2d 1558 (11th Cir. 1991), which found an *ex post facto* violation in a Georgia statute that decreased the frequency of parole hearings from once a year to every eight years. Obviously the Georgia statute was an example of how a procedural change could be expanded to have a substantive effect.

The Fourth Circuit's analysis is compelling. It is difficult to determine where the difference lies between a review once every two years and once every eight years. This gray area tortures the *ex post facto* analysis between a change in the standards for review and a procedural change in timing. The *Akins* court was faced with a statute that provided for a procedural change which effectively changed the standards for parole. We must now acknowledge that where a procedural rule is so overly intrusive that it substantively effects the review standard, it then becomes an *ex post facto* violation. In adopting the Fourth Circuit's holding in *Roller*, we overrule our holding in *Gunter*, 298 S.C. 113, 378 S.E.2d 443 (1989).

In light of our holding today, we need not reach the second issue. Accordingly, for the reasons stated, the decision of the PCR court is AFFIRMED.

HARWELL, C.J., CHANDLER, FINNEY and MOORE, JJ., concur.

(SEAL)

The Supreme Court of South Carolina

CLYDE N. DAVIS, JR.
CLERK
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DEPUTY CLERK

P.O. BOX 11330
COLUMBIA, S.C. 29211
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August 17, 1993

The Honorable T. Travis Medlock
The Honorable Joseph D. Shine
The Honorable Delbert H. Singleton, Jr.
The Honorable Carl W. Stent
Office of the Attorney General
P. O. Box 11549
Columbia, S. C. 29211

Re: Roger D. Griffin v. State of South Carolina

Gentlemen:

The Court has refused your Petition for Rehearing in the above case in the following order:

"Petition for Rehearing denied.

s/David W. Harwell C.J.
s/A. Lee Chandler A.J.
s/Ernest A. Finney, Jr. A.J.
s/Jean H. Toal A.J.
s/James E. Moore A.J.

August 17, 1993."

The remittitur in this matter is today being forwarded to the Clerk of Court for York County

Very truly yours,
/s/ Brenda F. Shealy
DEPUTY CLERK
